The Wilmot Proviso

Rep. David Wilmot (D-PA) · August 8, 1846

Source: Library of Congress, loc.gov/exhibits/treasures; Records of the U.S. House of Representatives, archives.gov.

Less than three months into the Mexican-American War, Pennsylvania Democrat David Wilmot proposed an amendment to a war-appropriations bill: any territory taken from Mexico must be free of slavery. The proviso passed the House (where free states dominated) but failed in the Senate. It never became law, yet it forced the slavery-extension question into the open and helped break the Second Party System.

Connect: The Wilmot Proviso reopens the exact question the Missouri Compromise (Class 8) tried to close. Why couldn't the 1820 solution work in 1846?

Key Passages

The full text of the proviso

> Provided, That, as an express and fundamental condition to the acquisition of any territory from the Republic of Mexico by the United States, by virtue of any treaty which may be negotiated between them, and to the use by the Executive of the moneys herein appropriated, neither slavery nor involuntary servitude shall ever exist in any part of said territory, except for crime, whereof the party shall be first duly convicted.

Wilmot's own framing — 'White Man's Proviso'

> I would preserve to free white labor a fair country, a rich inheritance, where the sons of toil, of my own race and own color, can live without the disgrace which association with Negro slavery brings upon free labor.

HIPP Analysis

Complete each row using evidence from the passages and your background knowledge.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	
Intended Audience *Who was the source written for?*	
Purpose *What did the author want to accomplish?*	
Point of View *Whose perspective? Whose is missing?*	

Analysis Prompts

1. Contextualization (DBQ/LEQ, 1 pt): Place the Wilmot Proviso in the broader 1840s-50s sectional crisis (Mexican War, Compromise of 1850, Kansas-Nebraska Act).

2. How does Wilmot's own racial framing complicate calling the Proviso an 'antislavery' measure?

3. Identify ONE later compromise or law that tried to answer the same question the Proviso raised.